

Lindsay Molander; Parker Austin v. Tesla Inc. doing business as Tesla Motors Inc.; Estate of Micah Lee; 2023 Jury Verdicts LEXIS 58461

RIC2002469

October 31, 2023

Headline: California Federal Jury Rejects Car Crash Survivors' Manufacturing Defect Claims Against Automotive Company

Party Names

Plaintiff(s):

Molander, Lindsay

Austin, Parker

Defendant(s):

Tesla Inc. doing business as Tesla Motors Inc.

Estate of Micah Lee

Topic: PRODUCT LIABILITY - Defective driver-assistance software

Practice Area: Torts

Method of Resolution: Trial

Case Resolution: For Defendant

All Dates: 05/2019 Vehicle Purchased

06/29/2019 Accident

06/2020 Complaint Filed

10/31/2023 Jury Verdict in Favor of Tesla

State: Washington

Court: Washington Superior Court, King County

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Case Summary

In May 2019, Micah Lee purchased a new 2019 Tesla Model 3 with the Full Self Driving package. On June 29, 2019, Lee was driving his new Tesla Model 3 southbound on 10 Interstate 215 at approximately 73 miles per hour with his girlfriend Lindsay Molander in the passenger seat and Molander's eight-year-old son Parker Austin in the rear driver's side seat. While driving, Lee was using the Tesla Model 3's Autopilot system when it allegedly suddenly malfunctioned, causing the car to make a sharp right turn off the road, where it collided head-on with a palm tree and burst into flames. Lee died from injuries suffered in the collision, while Molander and her son were severely injured.

In June 2020, Molander filed a complaint against Tesla and the estate of Micah Lee, alleging the crash occurred due to a defect in Tesla's driver-assistance software, which can match the speed of the driver's car to that of surrounding traffic and can assist in steering in a marked lane. According to the operative complaint, the software's safety features failed and caused the car to veer off the freeway. Additionally, the complaint alleged that Tesla knew its assisted-driving technology and enhanced safety features were defective when it sold the car. On the other hand, Molander argued that decedent Micah Lee "negligently and carelessly entrusted, owned, managed, maintained, drove and operated his said motor vehicle so as to fail to take corrective action after the failure of the autopilot system." Moreover, the complaint alleged that Lee had been drinking alcohol the day of the crash and was under the influence at the time of the crash, which hampered his ability to correct the failure of the autopilot. Molander and Austin sought damages for their physical and emotional injuries caused by the crash.

Conversely, during the trial, Tesla's counsel argued that Molander had no evidence that autopilot caused the crash, noting that Lee and Molander had been drinking that evening and Molander was not wearing her seatbelt.

On Oct. 31, 2023, in the Superior Court of the State of California, County of Riverside, a jury ultimately found that the systems on the car did not fail, that Tesla did not make a false statement of fact, and that Tesla did not intentionally fail to disclose a fact that it did not know and could not have reasonably discovered.

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